



FEDERAL PUBLIC SERVICE COMMISSION (SECOND AMENDMENT) ORDINANCE, 2005

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**FEDERAL PUBLIC SERVICE COMMISSION (SECOND AMENDMENT) ORDINANCE,
2005**

ORDINANCE No. XXV OF 2005

An Ordinance further to amend the Federal Public Service Commission Ordinance, 1977

WHEREAS it is expedient further to amend the Federal Public Service Commission Ordinance, 1977 (XLV of 1977), for the purposes hereinafter appearing;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate, the following Ordinance:

1. Short title and commencement.-(1) This Ordinance may be called the Federal Public Service Commission (Second Amendment) Ordinance, 2005.

(2) It shall come into force at once.

2. Amendment of section 4, Ordinance XLV of 1977. In the Federal Public Service Commission Ordinance, 1977 (XLV of, 1977), in section 4, for subsection (1) the following shall be substituted and shall be deemed always to have been so substituted, namely:-

"(1) A member of the commission shall hold office for a term of three years from the date on which he enters upon office or till he attains the age of sixty-five years whichever is earlier:

Provided that a member of the Commission who is a retired Judge of the Supreme Court or a High Court shall hold office for a term of three years within five years from the date of his retirement:

Provided further that a member of the Commission shall not be eligible for re-appointment.

(IA) Notwithstanding anything in any contract, agreement or any instrument containing terms and conditions of the service, a member who, on or after the commencement of the Federal Public Service Commission (Amendment) Ordinance, 2005 (XV of 2005), completes his tenure or attains upper age-limit specified in sub-section (1) shall on such commencement forthwith cease to be member as defined in clause (b) of section 2."
